

1 ENGROSSED SENATE AMENDMENT
TO
2 ENGROSSED HOUSE
BILL NO. 2137

By: Stinson of the House

and

Pugh of the Senate

7 An Act relating to criminal procedure; amending 22
O.S. 2021, Section 1175.8, which relates to the
8 resumption of competency; requiring the Department of
Mental Health and Substance Abuse Services to provide
9 notification to certain parties when seeking to
administer medication; providing for the filing of
10 applications for court orders authorizing medication;
requiring applications to indicate certain
11 information; requiring hearings to be held within
certain time frame; providing an exception; providing
12 list of rights for persons subject to an order
requiring the administration of medication; requiring
13 petitioner to provide clear and convincing evidence
in application; directing the court to make specific
14 findings of fact; establishing time limitations for
administering medications; providing construing
15 provision; and providing an effective date.

16
17 AUTHOR: Add the following House Coauthor: Archer

18 AMENDMENT NO. 1. Page 1, strike the title, enacting clause and
entire bill and insert

19
20 "An Act relating to criminal procedure; amending 22
O.S. 2021, Section 1175.8, which relates to the
21 resumption of competency; requiring the Department of
Mental Health and Substance Abuse Services to provide
22 notification to certain parties when seeking to
administer medication; providing for the filing of
23 applications for court orders authorizing medication;
requiring applications to indicate certain
24 information; requiring hearings to be held within

1 certain time frame; providing an exception; providing
2 list of rights for persons subject to an order
3 requiring the administration of medication; requiring
4 petitioner to provide clear and convincing evidence
5 in application; directing the court to make specific
6 findings of fact; establishing time limitations for
7 administering medications; providing construing
8 provision; amending 51 O.S. 2021, Section 152, as
9 last amended by Section 1, Chapter 314, O.S.L. 2025
10 (51 O.S. Supp. 2025, Section 152), which relates to
11 The Governmental Tort Claims Act; modifying
12 definitions; and providing an effective date.

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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 22 O.S. 2021, Section 1175.8, is
amended to read as follows:

Section 1175.8. A. If the medical supervisor reports that the
person appears to have achieved competency after a finding of
incompetency, the court shall hold another competency hearing to
determine if the person has achieved competency. If competency has
been achieved, the criminal proceedings shall be resumed.

B. If the Department of Mental Health and Substance Abuse
Services or its designee wishes to administer medication, including
psychotropic medication, to a person in custody under the provisions
of subsection A of Section 1175.6a of this title and has reason to
believe the person lacks the capacity to consent to or refuse
medication or the person refuses to take the medication voluntarily,
the Department or its designee shall notify the court, the
prosecuting office that filed the criminal petition, and the

1 attorney for the person. The prosecuting office or the Department
2 or its designee may, on behalf of the state, file an application for
3 an order authorizing medication for purposes of competency
4 restoration with the court. Any such application shall also seek
5 authorization to continue medication for purposes of maintaining the
6 level of restoration while incarcerated following competency
7 restoration.

8 C. An application seeking authorization of medication shall
9 indicate:

10 1. If the treating physician of the person believes the person
11 lacks the capacity to make a decision regarding administration of
12 the medication and the reasons for that belief;

13 2. A summary of the individualized treatment plan of the
14 person, including the class of medications to be potentially
15 administered and the corresponding dosage ranges;

16 3. The diagnosis of the person made by the treating physician;
17 and

18 4. The proposed method for administering the medication and, if
19 the method is not customary, an explanation justifying the departure
20 from the customary method.

21 D. The hearing on the application shall be held no later than
22 thirty (30) days after the filing of the application, unless good
23 cause is shown.

1 E. A person for whom an application for an order to authorize
2 the administration of medication is filed is entitled to:

3 1. An attorney to represent the person at the hearing. If the
4 person cannot afford an attorney, the court shall appoint an
5 attorney;

6 2. Meet with the attorney as soon as practicable to prepare for
7 the hearing;

8 3. Receive, as soon as practicable after the time the hearing
9 is set, a copy of the application and written notice of the time,
10 place, and date of the hearing;

11 4. Notice of the right to a hearing and right to the assistance
12 of an attorney to prepare for the hearing;

13 5. Be present at the hearing;

14 6. Request from the court an independent expert; and

15 7. Notification at the conclusion of the hearing of the
16 determination made by the court.

17 F. The administration of medication shall not be ordered unless
18 the petitioning party proves by clear and convincing evidence that:

19 1. There exists an important state interest that justifies
20 overriding the lack of consent by the person to the administration
21 of medication;

22 2. Involuntary medication is substantially likely to render the
23 person competent to stand trial and substantially unlikely to have
24

1 side effects that will interfere significantly with the ability of
2 the person to assist trial counsel;

3 3. Involuntary medication is necessary to further the interests
4 of the state and any alternative, less intrusive treatments are not
5 likely to achieve substantially the same results; and

6 4. The administration of the medication is in the best medical
7 interest of the person in light of the medical condition of the
8 person.

9 G. The court shall make specific findings of fact concerning:

10 1. Each consideration listed under the provisions of subsection
11 F of this section;

12 2. The desires of the person regarding the proposed treatment;
13 and

14 3. The capacity of the person to consent to or refuse
15 medication.

16 H. An order for the administration of medications entered
17 following a hearing conducted pursuant to this section shall be
18 effective for the period of the current involuntary commitment order
19 and any interim period during which the person is awaiting trial or
20 a hearing on a new petition for involuntary treatment or involuntary
21 medication. The order shall specify all medications to be
22 potentially involuntarily administered and corresponding dosage
23 ranges.

1 I. Nothing in this section shall be construed to invalidate,
2 prohibit, or alter the administration of medication to a person
3 under other laws or regulations of this state.

4 SECTION 2. AMENDATORY 51 O.S. 2021, Section 152, as last
5 amended by Section 1, Chapter 314, O.S.L. 2025 (51 O.S. Supp. 2025,
6 Section 152), is amended to read as follows:

7 Section 152. As used in The Governmental Tort Claims Act:

8 1. "Action" means a proceeding in a court of competent
9 jurisdiction by which one party brings a suit against another;

10 2. "Agency" means any board, commission, committee, department
11 or other instrumentality or entity designated to act in behalf of
12 the state or a political subdivision;

13 3. "Charitable health care provider" means a person who is
14 licensed, certified, or otherwise authorized by the laws of this
15 state to administer health care in the ordinary course of business
16 or the practice of a profession and who provides care to a medically
17 indigent person, as defined in paragraph 9 of this section, with no
18 expectation of or acceptance of compensation of any kind;

19 4. "Claim" means any written demand presented by a claimant or
20 the claimant's authorized representative in accordance with The
21 Governmental Tort Claims Act to recover money from the state or
22 political subdivision as compensation for an act or omission of a
23 political subdivision or the state or an employee;

1 5. "Claimant" means the person or the person's authorized
2 representative who files notice of a claim in accordance with The
3 Governmental Tort Claims Act. Only the following persons and no
4 others may be claimants:

- 5 a. any person holding an interest in real or personal
6 property which suffers a loss, provided that the claim
7 of the person shall be aggregated with claims of all
8 other persons holding an interest in the property and
9 the claims of all other persons which are derivative
10 of the loss, and that multiple claimants shall be
11 considered a single claimant,
- 12 b. the individual actually involved in the accident or
13 occurrence who suffers a loss, provided that the
14 individual shall aggregate in the claim the losses of
15 all other persons which are derivative of the loss, or
16 c. in the case of death, an administrator, special
17 administrator or a personal representative who shall
18 aggregate in the claim all losses of all persons which
19 are derivative of the death;

20 6. "Community health care provider" means:

- 21 a. a health care provider who volunteers services at a
22 community health center that has been deemed by the
23 U.S. Department of Health and Human Services as a
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1 federally qualified health center as defined by 42
2 U.S.C., Section 1396d(1)(2)(B),

- 3 b. a health provider who provides services to an
4 organization that has been deemed a federally
5 qualified look-alike community health center, and
- 6 c. a health care provider who provides services to a
7 community health center that has made application to
8 the U.S. Department of Health and Human Services for
9 approval and deeming as a federally qualified look-
10 alike community health center in compliance with
11 federal application guidance, and has received
12 comments from the U.S. Department of Health and Human
13 Services as to the status of such application with the
14 established intent of resubmitting a modified
15 application, or, if denied, a new application, no
16 later than six (6) months from the date of the
17 official notification from the U.S. Department of
18 Health and Human Services requiring resubmission of a
19 new application;

20 7. "Employee" means any person who is authorized to act ~~in~~ on
21 behalf of a political subdivision or the state whether that person
22 is acting on a permanent or temporary basis, with or without being
23 compensated or on a full-time or part-time basis.

- 24 a. Employee also includes:

1 (1) all elected or appointed officers, members of
2 governing bodies and other persons designated to
3 act for an agency or political subdivision, but
4 the term does not mean a person or other legal
5 entity while acting in the capacity of an
6 independent contractor or an employee of an
7 independent contractor,

8 (2) from September 1, 1991, through June 30, 1996,
9 licensed physicians, licensed osteopathic
10 physicians and Certified Nurse-Midwives providing
11 prenatal, delivery or infant care services to
12 State Department of Health clients pursuant to a
13 contract entered into with the State Department
14 of Health in accordance with paragraph 3 of
15 subsection C of Section 1-106 of Title 63 of the
16 Oklahoma Statutes but only insofar as services
17 authorized by and in conformity with the terms of
18 the contract and the requirements of Section 1-
19 233 of Title 63 of the Oklahoma Statutes, and

20 (3) any volunteer, full-time or part-time firefighter
21 when performing duties for a fire department
22 provided for in subparagraph j of paragraph 12 of
23 this section.
24

1 b. For the purposes of The Governmental Tort Claims Act,
2 the following are employees of this state, regardless
3 of the place in this state where duties as employees
4 are performed:

5 (1) physicians acting in an administrative capacity,

6 (2) resident physicians and resident interns
7 participating in a graduate medical education
8 program of the University of Oklahoma Health
9 Sciences Center, the Oklahoma State University
10 College of Osteopathic Medicine, a public trust
11 created pursuant to Section 3224 of Title 63 of
12 the Oklahoma Statutes and any sole member not-
13 for-profit corporation of the public trust and
14 any sole member not-for-profit subsidiary of such
15 corporation, or the Department of Mental Health
16 and Substance Abuse Services,

17 (3) faculty members and staff of the University of
18 Oklahoma Health Sciences Center, the Oklahoma
19 State University College of Osteopathic Medicine,
20 or a public trust created pursuant to Section
21 3224 of Title 63 of the Oklahoma Statutes and any
22 sole member not-for-profit corporation of the
23 public trust and any sole member not-for-profit
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1 subsidiary of such corporation, while engaged in
2 teaching duties,

3 (4) physicians who practice medicine or act in an
4 administrative capacity as an employee of an
5 agency of this state,

6 (5) physicians who provide medical care to inmates
7 pursuant to a contract with the Department of
8 Corrections,

9 (6) any person who is licensed to practice medicine
10 pursuant to Title 59 of the Oklahoma Statutes,
11 who is under an administrative professional
12 services contract with the Oklahoma Health Care
13 Authority under the auspices of the Oklahoma
14 Health Care Authority Chief Medical Officer, and
15 who is limited to performing administrative
16 duties such as professional guidance for medical
17 reviews, reimbursement rates, service
18 utilization, health care delivery and benefit
19 design for the Oklahoma Health Care Authority,
20 only while acting within the scope of such
21 contract,

22 (7) licensed medical professionals, health care
23 companies, and employees of health care companies
24 under contract with city, county, or state

1 entities who provide medical care to inmates or
2 detainees in the custody or control of law
3 enforcement agencies,

4 (8) licensed mental health professionals as defined
5 in Sections 1-103 and 5-502 of Title 43A of the
6 Oklahoma Statutes, who are conducting initial
7 examinations of individuals for the purpose of
8 determining whether an individual meets the
9 criteria for emergency detention as part of a
10 contract with the Department of Mental Health and
11 Substance Abuse Services, and

12 (9) licensed mental health professionals as defined
13 in Sections 1-103 and 5-502 of Title 43A of the
14 Oklahoma Statutes, who are providing mental
15 health or substance abuse treatment services
16 under a professional services contract with the
17 Department of Mental Health and Substance Abuse
18 Services and are providing such treatment
19 services at a state-operated facility.

20 Physician faculty members and physician staff of the
21 University of Oklahoma Health Sciences Center, the
22 Oklahoma State University College of Osteopathic
23 Medicine, or a public trust created pursuant to
24 Section 3224 of Title 63 of the Oklahoma Statutes and

1 any sole member not-for-profit corporation of the
2 public trust and any sole member not-for-profit
3 subsidiary of such corporation not acting in an
4 administrative capacity or engaged in teaching duties
5 are not employees or agents of the state.

6 c. For the purposes of The Governmental Tort Claims Act,
7 employee shall include independent contractors and
8 employees of independent contractors while actively
9 engaged in the transport of individuals in need of
10 initial assessment, emergency detention, or protective
11 custody as authorized by Section 1-110 of Title 43A of
12 the Oklahoma Statutes.

13 d. Except as provided in subparagraph b of this
14 paragraph, in no event shall the state be held liable
15 for the tortious conduct of any physician, resident
16 physician or intern while practicing medicine or
17 providing medical treatment to patients.

18 e. For purposes of The Governmental Tort Claims Act,
19 members of the state military forces on state active
20 duty orders or on Title 32 active duty orders are
21 employees of this state, regardless of the place,
22 within or outside this state, where their duties as
23 employees are performed;

1 8. "Loss" means death or injury to the body or rights of a
2 person or damage to real or personal property or rights therein;

3 9. "Medically indigent" means a person requiring medically
4 necessary hospital or other health care services for the person or
5 the dependents of the person who has no public or private third-
6 party coverage, and whose personal resources are insufficient to
7 provide for needed health care;

8 10. "Municipality" means any incorporated city or town, and all
9 institutions, agencies or instrumentalities of a municipality;

10 11. "Occurrence" means a loss arising out of an accident or
11 event or a continuous or repeated exposure to substantially the same
12 general harmful conditions. All losses arising out of an accident
13 or event or a continuous or repeated exposure to substantially the
14 same general harmful conditions shall be deemed to have arisen out
15 of one occurrence;

16 12. "Political subdivision" means:

17 a. a municipality,

18 b. a school district, including, but not limited to, a
19 technology center school district established pursuant
20 to Section 4410, 4411, 4420 or 4420.1 of Title 70 of
21 the Oklahoma Statutes, or a public library as defined
22 pursuant to Section 1-104 of Title 65 of the Oklahoma
23 Statutes,

24 c. a county,

1 d. a public trust where the sole beneficiary or
2 beneficiaries are a city, town, school district or
3 county. For purposes of The Governmental Tort Claims
4 Act, a public trust shall include:

5 (1) a municipal hospital created pursuant to Sections
6 30-101 through 30-109 of Title 11 of the Oklahoma
7 Statutes, a county hospital created pursuant to
8 Sections 781 through 796 of Title 19 of the
9 Oklahoma Statutes, or is created pursuant to a
10 joint agreement between such governing
11 authorities, that is operated for the public
12 benefit by a public trust created pursuant to
13 Sections 176 through 180.4 of Title 60 of the
14 Oklahoma Statutes and managed by a governing
15 board appointed or elected by the municipality,
16 county, or both, who exercises control of the
17 hospital, subject to the approval of the
18 governing body of the municipality, county, or
19 both,

20 (2) a public trust created pursuant to Sections 176
21 through 180.4 of Title 60 of the Oklahoma
22 Statutes after January 1, 2009, the primary
23 purpose of which is to own, manage, or operate a
24 public acute care hospital in this state that

1 serves as a teaching hospital for a medical
2 residency program provided by a college of
3 osteopathic medicine and provides care to
4 indigent persons, and

5 (3) a corporation in which all of the capital stock
6 is owned, or a limited liability company in which
7 all of the member interest is owned, by a public
8 trust,

9 e. for the purposes of The Governmental Tort Claims Act
10 only, a housing authority created pursuant to the
11 provisions of the Oklahoma Housing Authorities Act,

12 f. for the purposes of The Governmental Tort Claims Act
13 only, corporations organized not for profit pursuant
14 to the provisions of the Oklahoma General Corporation
15 Act for the primary purpose of developing and
16 providing rural water supply and sewage disposal
17 facilities to serve rural residents,

18 g. for the purposes of The Governmental Tort Claims Act
19 only, districts formed pursuant to the Rural Water,
20 Sewer, Gas and Solid Waste Management Districts Act,

21 h. for the purposes of The Governmental Tort Claims Act
22 only, master conservancy districts formed pursuant to
23 the Conservancy Act of Oklahoma,

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- 1 i. for the purposes of The Governmental Tort Claims Act
2 only, a fire protection district created pursuant to
3 the provisions of Section 901.1 et seq. of Title 19 of
4 the Oklahoma Statutes,
- 5 j. for the purposes of The Governmental Tort Claims Act
6 only, a benevolent or charitable corporate volunteer
7 or full-time fire department for an unincorporated
8 area created pursuant to the provisions of Section 592
9 et seq. of Title 18 of the Oklahoma Statutes,
- 10 k. for purposes of The Governmental Tort Claims Act only,
11 an emergency services provider rendering services
12 pursuant to an existing contract between the emergency
13 services provider and the State Department of Health.
14 Provided, however, that the acquisition of commercial
15 liability insurance covering the activities of such
16 emergency services provider performed within this
17 state shall not operate as a waiver of any of the
18 limitations, immunities or defenses provided for
19 political subdivisions pursuant to the terms of The
20 Governmental Tort Claims Act,
- 21 l. for purposes of The Governmental Tort Claims Act only,
22 a conservation district created pursuant to the
23 provisions of the Conservation District Act,
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- 1 m. for purposes of The Governmental Tort Claims Act,
2 districts formed pursuant to the Oklahoma Irrigation
3 District Act,
- 4 n. for purposes of The Governmental Tort Claims Act only,
5 any community action agency established pursuant to
6 Sections 5035 through 5040.1 of Title 74 of the
7 Oklahoma Statutes,
- 8 o. for purposes of The Governmental Tort Claims Act only,
9 any organization that is designated as a youth
10 services agency, pursuant to Section 2-7-306 of Title
11 10A of the Oklahoma Statutes,
- 12 p. for purposes of The Governmental Tort Claims Act only,
13 any judge presiding over a drug court, as defined by
14 Section 471.1 of Title 22 of the Oklahoma Statutes,
- 15 q. for purposes of The Governmental Tort Claims Act only,
16 any child-placing agency licensed by this state to
17 place children in foster family homes,
- 18 r. for purposes of The Governmental Tort Claims Act only,
19 a circuit engineering district created pursuant to
20 Section 687.1 of Title 69 of the Oklahoma Statutes,
- 21 s. for purposes of The Governmental Tort Claims Act only,
22 a substate planning district, regional council of
23 government or other entity created pursuant to Section
24 1001 et seq. of Title 74 of the Oklahoma Statutes, and

1 t. for purposes of The Governmental Tort Claims Act only,
2 a regional transportation authority created pursuant
3 to Section 1370.7 of Title 68 of the Oklahoma Statutes
4 including its contract operator and any railroad
5 operating in interstate commerce that sells a property
6 interest or provides services to a regional
7 transportation authority or allows the authority to
8 use the property or tracks of the railroad for the
9 provision of public passenger rail service to the
10 extent claims against the contract operator or
11 railroad arise out of or are related to or in
12 connection with such property interest, services or
13 operation of the public passenger rail service.
14 Provided, the acquisition of commercial liability
15 insurance to cover the activities of the regional
16 transportation authority, contract operator or
17 railroad shall not operate as a waiver of any
18 liabilities, immunities or defenses provided pursuant
19 to the provisions of The Governmental Tort Claims Act,
20 and all their institutions, instrumentalities or agencies;

21 13. "Scope of employment" means performance by an employee
22 acting in good faith within the duties of the employee's office or
23 employment or of tasks lawfully assigned by a competent authority
24 including the operation or use of an agency vehicle or equipment

1 with actual or implied consent of the supervisor of the employee,
2 but shall not include corruption or fraud;

3 14. "State" means the State of Oklahoma or any office,
4 department, agency, authority, commission, board, institution,
5 hospital, college, university, public trust created pursuant to
6 Title 60 of the Oklahoma Statutes of which the State of Oklahoma is
7 the beneficiary, or other instrumentality thereof;

8 15. "State active duty" shall be defined in accordance with
9 Section 801 of Title 44 of the Oklahoma Statutes;

10 16. "State military forces" shall be defined in accordance with
11 Section 801 of Title 44 of the Oklahoma Statutes;

12 17. "Title 32 active duty" shall be defined in accordance with
13 Section 801 of Title 44 of the Oklahoma Statutes; and

14 18. "Tort" means a legal wrong, independent of contract,
15 involving violation of a duty imposed by general law, statute, the
16 Oklahoma Constitution, or otherwise, resulting in a loss to any
17 person, association or corporation as the proximate result of an act
18 or omission of a political subdivision or the state or an employee
19 acting within the scope of employment; provided, however, a tort
20 shall not include a claim for inverse condemnation.

21 SECTION 3. This act shall become effective November 1, 2026."
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1 Passed the Senate the 5th day of May, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives

1 ENGROSSED HOUSE
2 BILL NO. 2137

By: Stinson of the House

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7 An Act relating to criminal procedure; amending 22 O.S. 2021,
8 Section 1175.8, which relates to the resumption of competency;
9 requiring the Department of Mental Health and Substance Abuse
10 Services to provide notification to certain parties when seeking to
11 administer medication; providing for the filing of applications for
12 court orders authorizing medication; requiring applications to
13 indicate certain information; requiring hearings to be held within
14 certain time frame; providing an exception; providing list of rights
15 for persons subject to an order requiring the administration of
16 medication; requiring petitioner to provide clear and convincing
17 evidence in application; directing the court to make specific
18 findings of fact; establishing time limitations for administering
19 medications; providing construing provision; and providing an
20 effective date.

21
22 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

23 SECTION 4. AMENDATORY 22 O.S. 2021, Section 1175.8, is
24 amended to read as follows:

Section 1175.8. A. If the medical supervisor reports that the
person appears to have achieved competency after a finding of
incompetency, the court shall hold another competency hearing to
determine if the person has achieved competency. If competency has
been achieved, the criminal proceedings shall be resumed.

1 B. If the Department of Mental Health and Substance Abuse
2 Services or designee wishes to administer medication, including
3 psychotropic medication, to a person in custody under the provisions
4 of subsection A of Section 1175.6a of this title and has reason to
5 believe the person lacks the capacity to consent to or refuse
6 medication or the person refuses to take the medication voluntarily,
7 the Department or designee shall notify the court, the prosecuting
8 office who filed the criminal petition, and the attorney for the
9 person. The prosecuting office or the Department or designee may,
10 on behalf of the state, file an application for an order authorizing
11 medication for purposes of competency restoration with the court.
12 Any such application shall also seek authorization to continue
13 medication for purposes of maintaining the level of restoration in
14 jail following competency restoration.

15 C. An application seeking authorization of medication shall
16 indicate:

17 1. If the treating physician of the person believes the person
18 lacks the capacity to make a decision regarding administration of
19 the medication and the reasons for that belief;

20 2. A summary of the individualized treatment plan of the
21 person, including the specific medications to be potentially
22 administered and the corresponding dosage ranges;

23 3. The diagnosis of the person made by the treating physician;
24 and

1 4. The proposed method for administering the medication and, if
2 the method is not customary, an explanation justifying the departure
3 from the customary method.

4 D. The hearing on the application shall be held no later than
5 thirty (30) days after the filing of the application, unless good
6 cause is shown.

7 E. A person for whom an application for an order to authorize
8 the administration of medication is filed is entitled to:

9 1. An attorney to represent the person at the hearing. If the
10 person cannot afford an attorney, the court shall appoint an
11 attorney;

12 2. Meet with the attorney as soon as is practicable to prepare
13 for the hearing;

14 3. Receive, as soon as practicable after the time the hearing
15 is set, a copy of the application and written notice of the time,
16 place, and date of the hearing;

17 4. Notice of the right to a hearing and right to the assistance
18 of an attorney to prepare for the hearing;

19 5. Be present at the hearing;

20 6. Request from the court an independent expert; and

21 7. Notification at the conclusion of the hearing of the
22 determination made by the court.

23 F. The administration of medication shall not be ordered unless
24 the petitioning party proves by clear and convincing evidence that:

1 1. There exists an important state interest that justifies
2 overriding the lack of consent by the person to the administration
3 of medication;

4 2. Involuntary medication is substantially likely to render the
5 person competent to stand trial and substantially unlikely to have
6 side effects that will interfere significantly with the ability of
7 the person to assist trial counsel;

8 3. Involuntary medication is necessary to further the interests
9 of the state and any alternative, less intrusive treatments are not
10 likely to achieve substantially the same results; and

11 4. The administration of the medication is in the best medical
12 interest of the person in light of the medical condition of the
13 person.

14 G. The court shall make specific findings of fact concerning:

15 1. Each consideration listed under the provisions of subsection
16 F of this section;

17 2. The desires of the person regarding the proposed treatment;
18 and

19 3. The capacity of the person to consent to or refuse
20 medication.

21 H. An order for the administration of medications entered
22 following a hearing conducted pursuant to this section shall be
23 effective for the period of the current involuntary commitment
24 order, and any interim period during which the person is awaiting

1 trial or a hearing on a new petition for involuntary treatment or
2 involuntary medication. The order shall specify all medications to
3 be potentially involuntarily administered and corresponding dosage
4 ranges.

5 I. Nothing in this section shall be construed to invalidate,
6 prohibit, or alter the administration of medication to a person
7 under other laws or regulations of this state.

8 SECTION 2. This act shall become effective November 1, 2025.

9 Passed the House of Representatives the 11th day of March, 2025.

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11 _____
12 Presiding Officer of the House
13 of Representatives

14 Passed the Senate the ____ day of _____, 2025.

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16 _____
17 Presiding Officer of the Senate

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